DATA PROTECTION IN THE GLOBAL SOUTH

TRUST, POWER, AND THE NEXT FIVE YEARS

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A new era of digital responsibility

Data protection in the Global South is no longer a technical afterthought; it is one of the main political and economic battlegrounds. More people are online than we have ever witnessed. An estimated 5.5 billion people, about 68% of the world, were using the internet in 2024. Yet access and protections are still deeply uneven, with roughly one-third of the world still offline, mostly in rural and low-income areas. This unequal connectivity decides who benefits from digital growth and who is exposed to harm and exploitation.

A number of countries in the Global South have moved swiftly to build legal frameworks. For example, India's Digital Personal Data Protection Act (2023) introduces new rules for how personal data is collected, processed, and transferred, indicating stronger oversight of cross-border flows.

South Africa's Protection of Personal Information Act (POPIA) is now administered by an active Information Regulator that has issued high-profile rulings in recent years. Kenya and Nigeria have data protection authorities that have started issuing fines and guidance. Combined, these reforms signal growing political will; governments do not only want control, they want citizen trust and economic value from their data ecosystems.

Challenges of fragmentation and enforcement

Regardless of these advances, there are three major gaps that persist. The first is regulatory fragmentation: differing rules across countries, diverse interpretations of cross-border data transfer, and inconsistent localisation requirements make compliance expensive for firms and confusing for citizens. The second is limited enforcement capacity. A lot of regulators lack sufficient technical infrastructure, skilled staff, and funding to monitor powerful corporations or to respond to large-scale data breaches. The third is market dominance by global technology giants. In many developing economies, a handful of foreign platforms control user data, forcing regulators to depend on company cooperation or face lengthy, resource-draining legal battles.

Recent enforcement actions emphasise both progress and strain. Nigeria's data authority fined Meta over serious privacy concerns, while Kenya sanctioned local banks for breaches, showing regulators' preparedness to act decisively. Yet these cases are also revealing of systemic challenges, limited compliance monitoring, contested penalties, and corporate resistance.

To combat this, the African Union's Data Policy Framework (2022) aims to harmonise standards, create shared governance structures, and build an African digital single market. If executed effectively, it could reduce fragmentation and strengthen collective bargaining power. However, strong national institutions and political commitment are needed for these frameworks to translate into real protection.

The future: AI, sovereignty, and cooperation

Looking beyond 2025, three forces are going to define the next phase of data protection in the Global South. Artificial Intelligence will intensify both opportunity and risk, as massive datasets fuel machine learning and automation. Decisions about how training data is sourced, processed, and shared are going to determine who benefits economically and who is left behind. BRICS and G20 platforms are increasingly debating digital sovereignty, algorithmic transparency, and equitable access to data, areas where Global South voices have to shape the conversation.

Cross-border data governance is also going to become a central issue. Excessive localisation may isolate economies, while weak transfer rules may expose citizens to exploitation. Finding a balance between privacy, innovation, and trade will require global coordination and regional coherence.

Finally, trust and enforcement are going to be the make-or-break factor. Regulators have to be independent, well-funded, and transparent. Civil society, investigative journalists, and academia have the responsibility to play watchdog roles to ensure accountability. Citizens, too, have to be empowered with digital literacy, understanding their rights, the value of their data, and how to demand protection.

Data protection in the Global South is sitting at a defining crossroads. It has the potential to evolve into a tool for inclusive growth and digital justice, or become another layer of dependency and inequality. The outcome will depend on whether countries build not just laws, but real capacity, cooperation, and courage, before the next technological wave decides for them.